

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTINE ALLYSON PARIS,

Petitioner

VS.

ANDREW MARC KLINMAN,

Respondent

) Case Number: FDI-25-801871

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
PROPERTY CONTROL

TENTATIVE RULING

**The parties are ordered to appear in-person or via Zoom video at 9AM on 8/6/2026 in
Department 404 to set an evidentiary hearing.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Martine Paris (Wife) and Respondent Andrew Klinman (Husband) married on 5/6/1995. Wife contends the parties separated on 8/27/2025, for a marriage of 30 years and 3 months. Husband stated “TBD” with respect to his purported date of separation although he acknowledges the parties were married for 20+ years. The parties have one adult child and no minor children. Wife is represented by Laughlin, Legal, PC: Family Law Group. Husband is represented by Whiting, Ross, Abel & Campbell, LLP.
- 2) There have been no orders made in this case to date.
- 3) On for hearing is Wife’s Request for Order filed 4/21/2026 seeking:
 - a. Temporary guideline spousal support of \$19,358 per month;

- 1 b. Exclusive temporary use, possession, and control of the property located at 1238 and
2 1238A 47th Ave. San Francisco, CA 94122 and an order requiring Husband to vacate the
3 residence;
- 4 c. Husband to make the following payments and provide proof of payment: \$4,858 per
5 month for mortgage for 2039 45th Ave., \$3,122.90 per month for home insurance for
6 2039 45th Ave., \$1,937 per month for earthquake insurance for 2039 45th Ave.,
7 \$7,368.64+ per month for property taxes for 2039 45th Ave., \$32,035+ for Chase Visa
8 #6785, \$27,849+ for Chase Visa #9820, and \$28,101 for Chase Visa #3531; and
9 d. \$150,000 in need-based attorney's fees and costs.
- 10 4) On 4/21/2026, Wife filed an Income and Expense Declaration.
- 11 5) On 4/21/2026, Wife filed a Memorandum of Points and Authorities.
- 12 6) On 4/21/2026, Wife's attorney (Andrew Volkov of Laughlin Legal) filed a declaration in support
13 of Wife's request for spousal support and attorney fees. Wife's attorney states, "Petitioner
14 requests an award of \$150,000 in attorney's fees and costs. In my professional judgment, this
15 amount is reasonably necessary to cover the outstanding work-in-progress, conduct discovery,
16 investigate Respondent's financial activity, and address the complex financial issues in this case."
- 17 7) On 7/24/2026, Husband filed a Responsive Declaration asking the Court to:
- 18 a. Deny Wife's request for spousal support "for periods when we occupy two separate
19 dwellings in the same duplex at 47th Avenue and I pay the mortgage, property taxes,
20 utilities and insurance for the entire duplex...and during periods when I pay the joint
21 credit cards that Petitioner uses for her living expenses;"
- 22 b. Grant Wife's request for temporary spousal support in the amount calculated by my
23 family law forensic, CPA Spaete (\$10,732 per month), but only for periods where the
24 parties share equally all Joint Duplex Costs and Husband does not pay Wife's credit card
25 expenditures.
- 26 c. Order Wife to undergo a Vocational Evaluation conducted by Marlis Bruns;
- 27 d. Issue a Gavron warning, and a related Marriage of McElwee (1988) 197 Cal.App.3d 902
28 warning to Wife that "improvident mismanagement of assets" may justify termination of
29 spousal support;

- e. Deny Wife's request for need-based attorney's fees.
- 8) On 7/24/2026, Husband filed an Income and Expense Declaration.
- 9) On 7/24/2026, Husband filed a Declaration in Support of Husband's Request for Attorney's Fees.
- 10) On 7/24/2026, Husband filed a Memorandum of Points and Authorities.
- 11) On 7/24/2026, Husband filed a Declaration of Alex Spaete, CPA-ABV, CITP on Income Available for Support. Mr. Spaete includes a proposed XSpouse calculation showing monthly guideline spousal support owed by Husband of \$10,732.
- 12) On 7/30/2026, Wife filed a Reply Declaration. Wife states she is withdrawing her request for exclusive use of the property located at 1238 and 1238A 47th Ave. San Francisco, CA 94122. Wife now requests temporary spousal support of no less than \$27,757 per month (per an updated guideline calculation) retroactive to 8/27/2025 (the date she filed her Petition for Dissolution), \$165,282 in attorney's fees incurred to date, and \$150,000 in estimated attorney's fees and costs through trial.
- 13) On 7/30/2026, Wife's attorney (Robert Rathmell of Laughlin Legal) filed a Declaration in Support of Petitioner's Request for Attorney's Fees and Costs. Mr. Rathmell states, "To date, Ms. Paris has incurred professional fees and costs in the amount of \$165,282 which is \$140,282 plus about \$25,000 of work-in-progress (WIP). She also paid a retainer to our firm in the amount of \$20,000 and received a refund of her retainer from JKZ in the amount of \$13,834. We estimate that prospective fees in the amount of \$150,000 will be necessary to conclude the case."
- 14) On 7/30/2026, Wife filed a Reply Memorandum of Points and Authorities.
- 15) On 7/30/2026, Wife filed a Declaration of Scott C. Stewart, CPA, Regarding Income Available for Support.
- 16) On 7/30/2026, Wife filed a Statement of Support Calculations showing monthly guideline spousal support owed by Husband of \$27,757 (based upon Scott Stewart, CPA's report).
- 17) On 7/30/2026, Wife filed an updated Income and Expense Declaration.
- 18) On 8/3/2026, Husband filed an Objection to Declaration of CPA Scott C. Stewart and Request for Evidentiary Hearing. Husband states that CPA Stewart's declaration was not filed 16 Court days before the hearing, is not a proper reply, and deprives Husband of the opportunity to meaningfully respond. Husband states he "objects to CPA Stewart's declaration due to lack of

1 foundation, and improper expert opinion. CPA Stewart apparently states certain conclusions
2 about Respondent's 'income' in 2025. (Actually, CPA Stewart's opinion is based on withdrawals
3 Respondent made in 2025 from his business accounts, which is not 'income' at all.) Crucially,
4 CPA Stewart fails to disclose the methodology, reasoning, or analysis by which he converted
5 referenced financial records into an 'income' figure, in violation of Cal. Evid. Code §§ 801(b)
6 and 802, and Cal. Rules of Court, rule 5.111(b)(2). If you search CPA Stewart's declaration to
7 ascertain which specific records he relied upon, or to double check his arithmetic, you would
8 search in vain." Husband asks the Court to strike CPA Stewart's declaration. In the alternative,
9 Husband requests an evidentiary hearing so that his expert CPA Alex Spaete can testify regarding
10 the errors and omissions in CPA Stewart's report.

11 19) On 8/4/2026, Wife filed an Evidentiary Objection and Motion to Strike. Wife asks the Court to
12 strike Husband's expert's report (Alex Spaete, CPA) on the grounds of hearsay, multiple hearsay,
13 case specific hearsay, lack of foundation, and unqualified expert opinion, or in the alternative to
14 set this matter for an evidentiary hearing so that both accountants can testify.

15 **B. Findings and Order**

- 16 1) The parties' requests to strike the declarations of CPA Spaete and CPA Stewart are denied. The
17 Court finds that the competing expert opinions are more appropriately addressed through an
18 evidentiary hearing than by striking either declaration.
- 19 2) Wife's request for temporary spousal support retroactive to the date she filed her Petition for
20 Dissolution is denied. The Court reserves jurisdiction to determine temporary spousal support for
21 the period 4/21/2026 (the date Wife filed her Request for Order) through 7/30/2026 at the
22 evidentiary hearing described below. Once a final temporary spousal support figure has been
23 determined, the Court intends to deduct from any spousal support arrears owed by Husband for
24 the period 4/21/2026 – 7/30/2026: (a) Wife's one-half share of any amounts Husband paid
25 towards the parties' joint living expenses and (b) any payments made by Husband during the
26 period 4/21/2026 – 7/30/2026 for credit card charges made by Wife.
- 27 3) Pending the evidentiary hearing and effective 8/1/2026, Husband shall pay to Wife temporary
28 guideline spousal support in the amount of \$10,732 per month in accordance with the XSpouse
29

1 calculation attached to CPA Alex Spaete's declaration filed 7/24/2026. One-half shall be due and
2 payable by the 1st and one-half shall be due and payable by the 15th of each month.

- 3 4) So long as the parties remain living in their current duplex, Husband may deduct from Wife's
4 monthly spousal support one-half of the carrying costs for the duplex, including mortgage,
5 property taxes, insurance, as well as one-half of utilities. Husband shall forward to Wife the
6 invoices for any items he deducts from Wife's monthly support.
- 7 5) Wife's request that the Court order Husband to make the following payments is denied: \$32,035+
8 for Chase Visa #6785, \$27,849+ for Chase Visa #9820, and \$28,101 for Chase Visa #3531. The
9 parties shall meet and confer regarding whether Wife would like Husband to continue to make the
10 monthly payments on their joint credit cards for charges made by Wife (and if so those payments
11 shall be deducted from Wife's monthly support going forward) or whether Wife will assume the
12 payments on those charges going forward.
- 13 6) Husband's request that Wife undergo a vocational evaluation with Marlis Bruns is hereby
14 granted. Marlis Bruns is hereby appointed as the Court's Evidence Code section 730 expert to
15 perform a vocational evaluation of Wife. The parties shall share the cost of the vocational
16 evaluation equally. Husband shall advance the cost of the vocational evaluation. Wife's one-half
17 share of the cost of the evaluation shall be paid from her share of the community estate during the
18 final accounting in this case. Ms. Bruns shall take into consideration any medical conditions of
19 Wife when determining Wife's earning capacity. Wife shall submit to a vocational evaluation
20 with Ms. Bruns forthwith and Wife shall promptly respond to all requests for information and
21 documentation by Ms. Bruns. The Court would like for the vocational evaluation to be completed
22 prior to the evidentiary hearing. Effective immediately, both parties shall be CC'd on all written
23 communication with Ms. Bruns.
- 24 7) Regarding Wife's request that Husband make the following payments and provide proof of
25 payment (\$4,858 per month for mortgage for 2039 45th Ave., \$3,122.90 per month for home
26 insurance for 2039 45th Ave., \$1,937 per month for earthquake insurance for 2039 45th Ave.),
27 the Court orders Husband to continue managing the 2039 45th Ave. rental property as he has been.
- 28 8) As Wife recently materially altered her request for need-based attorney's fees and costs (and filed
29 an updated Income and Expense Declaration with new information on 7/30/2026), the Court finds

1 good cause to continue the hearing on Wife's request for need-based attorney's fees and costs to
2 **Tuesday, 10/20/2026 at 9:00 AM in Dept. 404.** At least 20 calendar days prior to the next
3 hearing date, Wife's attorney may file and serve an updated declaration (not to exceed 5 pages in
4 length, not including exhibits) in support of Wife's request for fees which may include his
5 estimate regarding attorney's fees to be incurred for him to prepare for and represent Wife at the
6 upcoming long-cause hearing. At least 10 calendar days prior to the next hearing date, Husband
7 may file and serve a declaration (not to exceed 5 pages, not including exhibits) providing any
8 updated response to Wife's attorney's fees request.

9 9) The Court will set an evidentiary hearing on the following issues: (a) temporary spousal support
10 from 4/21/2026 and going forward, (b) any arrears or credits owed for temporary spousal support,
11 (c) whether to impute income to Wife, and (d) whether Wife should receive a Gavron warning
12 and a warning under Marriage of McElwee. **The parties are ordered to appear at the 8/6/2026**
13 **hearing to set the evidentiary hearing.**

14 10) The parties shall use their best efforts to meet and confer (which may include setting up a meeting
15 with the attorneys, parties, and their experts) regarding the issues of temporary spousal support
16 and Husband's income available for support in advance of the evidentiary hearing.

17 11) Husband's attorney shall prepare the Findings and Order After Hearing.

18 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).